

MASTER SERVICES AGREEMENT (MSA)

This Master Services Agreement ("Agreement") is entered into on May 14, 2026, between **Acme Manufacturing Inc.** ("Client") and **NovaTech Solutions LLC** ("Vendor").

1. Scope of Services

Vendor shall provide cloud hosting, analytics, and procurement software services.

2. Payment Terms

Invoices are payable within ninety (90) days. Vendor may charge 5% monthly late fees.

3. Limitation of Liability

Vendor liability shall be unlimited, including indirect and consequential damages.

4. Indemnification

Client shall indemnify Vendor against all claims without financial limitation.

5. Confidentiality

Confidentiality obligations survive for two (2) years after termination.

6. Data Privacy

Vendor may transfer Client data internationally without prior approval.

7. Governing Law

This Agreement is governed by the laws of California.

8. Auto Renewal

Agreement renews automatically every three years unless canceled 180 days before renewal.

9. Service Levels

Vendor will use commercially reasonable efforts for uptime. No SLA credits apply.

10. Termination

Client may terminate only after a 120-day cure period.

Risk Area	Observation
Unlimited Liability	Potential uncapped financial exposure

90-Day Payment Terms- Test11	Negative cash flow impact
Weak SLA	No compensation for outages
Auto Renewal	High vendor lock-in risk
International Data Transfer	Potential GDPR/compliance issues

Authorized Signature - Acme Manufacturing Inc.

Authorized Signature - NovaTech Solutions LLC
